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119TH CONGRESS }
1st Session

SENATE

{ REPORT
119-74

NATIONAL EARTHQUAKE HAZARDS REDUC-
TION PROGRAM REAUTHORIZATION ACT
OF 2025

R E P O R T

OF THE

COMMITTEE ON COMMERCE, SCIENCE, AND
TRANSPORTATION

ON

S. 320



OCTOBER 14, 2025.—Ordered to be printed

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SENATE COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

ONE HUNDRED NINETEENTH CONGRESS

FIRST SESSION

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OCTOBER 14, 2025.—Ordered to be printed

Mr. CRUZ, from the Committee on Commerce, Science, and
Transportation, submitted the following

R E P O R T

[To accompany S. 320]

[Including cost estimate of the Congressional Budget Office]

The Committee on Commerce, Science, and Transportation, to which was referred the bill (S. 320) to reauthorize the Earthquake Hazards Reduction Act of 1977, and for other purposes, having considered the same, reports favorably thereon with an amendment in the nature of a substitute and recommends that the bill, as amended, do pass.

PURPOSE OF THE BILL

The purpose of S. 320 is to reauthorize the Earthquake Hazards Reduction Act and to expand the responsibilities of the U.S. Geological Survey (USGS) to improve earthquake monitoring and early warning capabilities.

BACKGROUND AND NEEDS

The National Earthquake Hazards Reduction Program (NEHRP or Program) is a multi-disciplinary and interagency program created under the Earthquake Hazards Reduction Act of 1977 (EHRA).¹ It was created to facilitate Federal, State, local, and private research, planning, decision-making, and mitigation efforts related to seismic activity.

Four agencies contribute to the NEHRP, each with distinct responsibilities: the National Institute of Standards and Technology

¹ Public Law 95-124, 91 Stat. 1098 (1977).

(NIST) leads the Program and manages NEHRP planning and coordination; the Federal Emergency Management Agency (FEMA) promotes the implementation of research findings, best practices, and earthquake preparedness, response, and public awareness efforts; the National Science Foundation (NSF) funds seismology and geological research; and the USGS delivers earthquake monitoring and notification services, conducts post-earthquake investigations, and performs related research.²

A FEMA/USGS report published in 2023 estimated the total economic exposure to earthquake losses at \$107.8 trillion annually.³

SUMMARY OF PROVISIONS

S. 320 would do the following:

- Add Tribal territories to the Program.
- Expand the scope of earthquake-related hazards to include tsunamis caused by earthquakes.
- Direct the Program to coordinate with the National Oceanic and Atmospheric Administration (NOAA) and FEMA to support timely responses, and consult with the Federal Communications Commission (FCC) to improve alerting systems.
- Direct State and local entities to inventory high-risk buildings and structures.
- Authorize appropriations for FEMA, USGS, NSF, and NIST.

LEGISLATIVE HISTORY

S. 320, the National Earthquake Hazards Reduction Program Reauthorization Act of 2025, was introduced on January 29, 2025, by Senator Padilla (for himself and Senator Murkowski) and was referred to the Committee on Commerce, Science, and Transportation of the Senate. On April 30, 2025, the Committee met in open Executive Session and, by voice vote, ordered S. 320 reported favorably with an amendment (in the nature of a substitute).

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S. 3606, the National Earthquake Hazards Reduction Program Reauthorization Act of 2024, was introduced on January 17, 2024, by Senator Padilla (for himself and Senator Murkowski) and was referred to the Committee on Commerce, Science, and Transportation of the Senate. On July 31, 2024, the Committee met in open Executive Session and, by voice vote, ordered S. 3606 reported favorably with an amendment (in the nature of a substitute). Senators Wyden, Merkley, and Tester were later added as cosponsors. On December 5, 2024, S. 3606 passed the Senate with an amendment by unanimous consent.

² FEMA, “The National Earthquake Hazards Reduction Program (NEHRP) Overview Fact Sheet,” July 2019, https://www.fema.gov/sites/default/files/documents/fema_nehrp_overview_fact_sheet.pdf.

³ FEMA and USGS, *Hazus Estimated Annualized Earthquake Losses for the United States*, April 2023, https://www.fema.gov/sites/default/files/documents/fema_p-366-hazus-estimated-annualized-earthquake-losses-united-states.pdf; “New USGS-FEMA Study Highlights Economics Earthquake Risks in the United States,” Office of Communications and Publishing, USGS, April 18, 2023, <https://www.usgs.gov/news/national-news-release/new-usgs-fema-study-highlights-economic-earthquake-risk-united-states>.

ESTIMATED COSTS

In accordance with paragraph 11(a) of rule XXVI of the Standing Rules of the Senate and section 403 of the Congressional Budget Act of 1974, the Committee provides the following cost estimate, prepared by the Congressional Budget Office:

S. 320, National Earthquake Hazard Reduction Program Reauthorization Act of 2025			
As ordered reported by the Senate Committee on Commerce, Science, and Transportation on April 30, 2025			
By Fiscal Year, Millions of Dollars	2025	2025-2030	2025-2035
Direct Spending (Outlays)	0	0	0
Revenues	0	0	0
Increase or Decrease (-) in the Deficit	0	0	0
Spending Subject to Appropriation (Outlays)	20	596	625
Increases <i>net direct spending</i> in any of the four consecutive 10-year periods beginning in 2036?	No	Statutory pay-as-you-go procedures apply?	No
		Mandate Effects	
Increases <i>on-budget deficits</i> in any of the four consecutive 10-year periods beginning in 2036?	No	Contains intergovernmental mandate?	No
		Contains private-sector mandate?	No

S. 320 would amend the Earthquake Hazards Reduction Act of 1977 to make changes to the National Earthquake Hazards Reduction Program, an interagency program focused on reducing earthquake-related risks to life and property. S. 320 also would authorize appropriations of \$161 million annually for fiscal years 2025 through 2028 for the U.S. Geological Survey, the Federal Emergency Management Agency, the National Science Foundation, and the National Institute of Standards and Technology to implement the program.

Additionally, the bill would require the agencies to develop best practices to assist state, local, and tribal governments with creating inventories of critical buildings and structures, and with developing evacuation plans and expanding early warning systems. The agencies also would be required to report to the Congress every two years about activities related to the program.

CBO assumes that the bill will be enacted near the end of fiscal year 2025 and that the authorized amounts will be provided for each year beginning in 2025. In 2024, the agencies allocated \$164 million for the program from funds provided in the appropriation acts for that year. Based on historical spending patterns, CBO estimates that reauthorizing the program would cost \$596 million over the 2025–2030 period and \$29 million after 2030, assuming appropriation of the authorized amounts.

The costs of the legislation, detailed in Table 1, fall within budget functions 250 (general science, space, and technology), 300 (natural resources and environment), 370 (commerce and housing credit), and 450 (community and regional development).

TABLE 1.—ESTIMATED INCREASES IN SPENDING SUBJECT TO APPROPRIATION UNDER S. 320

	By fiscal year, millions of dollars—						
	2025	2026	2027	2028	2029	2030	2025– 2030
U.S. Geological Survey:							
Authorization	92	92	92	92	0	0	368
Estimated Outlays	17	137	90	89	23	3	359
National Science Foundation:							
Authorization	54	54	54	54	0	0	216
Estimated Outlays	2	30	39	46	43	26	186
Federal Emergency Management Agency:							
Authorization	9	9	9	9	0	0	36
Estimated Outlays	*	4	5	7	7	5	28
National Institute of Standards and Technology:							
Authorization	6	6	6	6	0	0	24
Estimated Outlays	1	9	6	6	1	0	23
Total Changes:							
Authorization	161	161	161	161	0	0	644
Estimated Outlays	20	180	140	148	74	34	596

* = between zero and \$500,000.

The CBO staff contact for this estimate is Kelly Durand. The estimate was reviewed by H. Samuel Papenfuss, Deputy Director of Budget Analysis.

PHILLIP L. SWAGEL,
Director, Congressional Budget Office.

REGULATORY IMPACT STATEMENT

In accordance with paragraph 11(b) of rule XXVI of the Standing Rules of the Senate, the Committee provides the following evaluation of the regulatory impact of the legislation, as reported:

NUMBER OF PERSONS COVERED

S. 320 would cover individuals residing in areas at risk of earthquake damage, with a focus on high-risk seismic zones across the United States. This would include regions such as the Pacific Coast, parts of Alaska, and areas in the central United States that face increased vulnerability. The bill would ensure that millions of people—roughly half the U.S. population—are included, specifically targeting communities most likely to experience earthquake-related harm in the coming decades. Tribal populations would also be accounted for, ensuring that Native American territories are part of the protection framework. In total, the coverage would extend to a significant portion of the American population in high-risk areas.

ECONOMIC IMPACT

S. 320 may have a positive economic impact. The bill focuses on mitigating the costs and damages caused by earthquakes through research, standards development, and improved coordination among federal, state, and local partners. Activities such as advancing building code standards, supporting seismic hazard assessments, and enhancing earthquake preparedness could help reduce the long-term economic burden of earthquake-related damage by limiting catastrophic losses to businesses, homes, and public services. While there may be short-term costs associated with carrying out these programs, such investments may yield significant long-

term savings by reducing the need for costly rebuilding efforts and disaster recovery operations.

PRIVACY

S. 320 is anticipated to have no impact on the personal privacy of individuals and would not provide any additional requirements or allowances that would affect business privacy.

PAPERWORK

The Committee does not anticipate a major increase in paperwork burdens resulting from the passage of this legislation. While the bill would include provisions for biennial reports from NEHRP agencies, the purpose is to enhance transparency and accountability without creating significant additional paperwork. These reports would be designed to evaluate the progress of earthquake hazards reduction activities and provide recommendations for improving national earthquake preparedness and response efforts.

CONGRESSIONALLY DIRECTED SPENDING

In compliance with paragraph 4(b) of rule XLIV of the Standing Rules of the Senate, the Committee provides that no provisions contained in the bill, as reported, meet the definition of congressionally directed spending items under the rule.

SECTION-BY-SECTION ANALYSIS

Section 1. Short title.

This section would provide that the bill may be cited as the “National Earthquake Hazards Reduction Program Reauthorization Act of 2025”.

Section 2. Modification of findings.

This section would update seismic-related statistics, including by citing Federal reports that estimate annualized earthquake losses to the national building stock at \$14.7 billion. This section would also highlight the risk of buildings built to older codes and standards.

Section 3. Modification of purpose.

This section would modify the congressional statement of purpose to include expanding targeted outreach to Tribal government officials and prioritizing the development of design and construction methods and procedures for housing and care facilities for vulnerable populations.

Section 4. Modification of definitions.

This section would amend the definition of the term “seismic” to include secondary effects such as earthquake-caused tsunamis. This section would also add definitions for the terms “Tribal government”, “functional recovery”, and “earthquake forecast”.

Section 5. Improvements to National Earthquake Hazards Reduction Program.

This section would revise several portions of the Program, including incorporating Tribal governments into NEHRP outreach, creating an inventory of buildings and infrastructure with high seismic risk subject to available funds, and coordinating with Federal agencies to improve alert systems.

This section would also expand the membership of the Advisory Committee on Earthquake Hazards Reduction to include the Chair of the Scientific Earthquake Studies Advisory Committee and representatives from Tribal governments. NIST would be directed to support mitigation of earthquake-caused fires, and coordinate with FEMA to develop best practices and provide technical assistance for taking inventory of lifeline infrastructure and buildings. FEMA's responsibilities would be updated to include providing technical assistance to government entities for the creation of evacuation plans. USGS would be directed to coordinate with NOAA and FEMA to improve data sharing and resource allocation to support a timely response to oceanic earthquakes and tsunamis. Additionally, USGS would be required to consult with the FCC to provide timely alerts for oceanic earthquakes and tsunamis.

Lastly, this section would require the NSF to identify tsunami and liquefaction risk map projects and clarify the definition of the institutions that are required to be included to the maximum extent practicable for research funding under this Act.

Section 6. Seismic performance property standards.

This section would direct the Secretary of Housing and Urban Development to develop seismic performance standards, rather than seismic "safety" standards, for assisted properties under the Program. The standards would be designed to reduce the risk of seismic-related property damage to improve functional recovery time, as opposed to shake-related property damage.

Section 7. Seismic standards.

This section would amend congressional reporting requirements to require an analysis of how Program agencies have implemented previous report recommendations. This section would also establish a biennial reporting requirement for Program agencies to the Inter-agency Coordinating Committee on continued progress.

Section 8. Improvements to post-earthquake investigations program.

This section would expand the scope of earthquake investigations conducted by USGS to include both domestic and international earthquakes.

Section 9. Authorization of appropriations.

This section would authorize appropriations for each of fiscal years 2024 to 2028: \$8.5 million for FEMA, \$92.427 million for USGS, \$54 million for NSF, and \$5.9 million for NIST.

CHANGES IN EXISTING LAW

In compliance with paragraph 12 of rule XXVI of the Standing Rules of the Senate, changes in existing law made by the bill, as

reported, are shown as follows (existing law proposed to be omitted is enclosed in black brackets, new material is printed in italic, existing law in which no change is proposed is shown in roman):

CRANSTON-GONZALES NATIONAL AFFORDABLE HOUSING ACT

* * * * *

[42 U.S.C. 7704a]

SEC. 947. REPORT ON SEISMIC SAFETY PROPERTY STANDARDS.

(a) **AUTHORITY.**—The Secretary of Housing and Urban Development (in this section referred to as the “Secretary”) shall assess the risk of earthquake-related damage to properties assisted under programs administered by the Secretary and shall develop seismic **[safety]** *performance* standards for such properties. This section may not be construed to prohibit the Secretary from deferring to local building codes that meet the requirements of the seismic **[safety]** *performance* standards developed under this section.

(b) **STANDARDS.**—The standards shall be designed to reduce the risk of loss of life to building occupants to the maximum extent feasible and to reduce the risk of **[shake-related property damage]** *seismic-related property damage to improve the post-earthquake functional recovery time* to the maximum extent practicable.

(c) **CONSULTATION.**—In carrying out this section, the Secretary shall consult with the Administrator of the Federal Emergency Management Agency and may utilize the resources under the National Earthquake Hazards Reduction Program (established under the Earthquake Hazards Reduction Act of 1977 and any other resources as may be required to carry out the activities under this section.

* * * * *

EARTHQUAKE HAZARDS REDUCTION ACT OF 1977

* * * * *

[42 U.S.C. 7701]

SEC. 2. FINDINGS.

The Congress finds and declares the following:

(1) All **[50 States, and the Commonwealth of Puerto Rico,]** *States and Tribal jurisdictions* are vulnerable to the hazards of earthquakes, and at least 39 **[of them]** *States* are subject to major or moderate seismic risk, including Alaska, California, Hawaii, Illinois, Massachusetts, Missouri, Montana, Nevada, New Jersey, New York, Oregon, South Carolina **[Tennessee,,],** *Tennessee*, Utah, and Washington. **[A large portion of the population of the United States lives in areas vulnerable to earthquake hazards]** *Almost half of the United States population resides in areas that are at risk or experiencing a damaging earthquake during the 50-year period beginning on the date of*

the enactment of the National Earthquake Hazards Reduction Program Reauthorization Act of 2025.

(2) Earthquakes have caused, and can cause in the future, enormous loss of life, injury, destruction of property, and economic and social disruption. A 2023 report by the Federal Emergency Management Agency and the United States Geological Survey (FEMA P-366) estimates the annualized earthquake losses to the national building stock is \$14,700,000,000 per year and the total economic exposure to earthquake losses (buildings and contents) across the nation is \$107,800,000,000,000. With respect to future earthquakes, such loss, destruction, and disruption can be substantially reduced through the development and implementation of earthquake hazards reduction measures, including (A) improved design [and construction], construction, evaluation, and retrofitting methods and practices, (B) land-use controls and redevelopment, (C) early-warning systems, (D) coordinated emergency preparedness plans, [and (E)] (E) inventories of buildings and infrastructure with high seismic risk, especially those that are critical to community resilience, (F) programs that require or incentivize replacement or retrofit of existing buildings and infrastructure with high seismic risk, especially those that are critical to community resilience, and (G) public education and involvement programs.

(3) An expertly staffed and adequately financed earthquake hazards reduction program, based on Federal, State, local, Tribal, and private research, planning, decisionmaking, and contributions would reduce the risk of such loss, destruction, and disruption in seismic areas by an amount far greater than the cost of such program.

(4) A well-funded seismological research program [could provide the scientific understanding needed to fully implement an effective earthquake early warning system.] *is necessary to provide the scientific understanding needed to improve and expand the earthquake early warning system.*

(5) * * *

(6) * * *

(7) * * *

(8) The implementation of earthquake hazards reduction measures would, as an added benefit, also reduce the risk of loss, destruction, and disruption from other natural hazards and man-made hazards, including hurricanes, tornadoes, accidents, explosions, landslides, building and structural [cave-ins] collapse, and fires.

(9) Reduction of loss, destruction, and disruption from earthquakes will depend on the actions of individuals, and organizations in the private sector and governmental units at Federal, State, [and local] local, and Tribal government levels. The current capability to [transfer knowledge and information to] *exchange knowledge and information between* these sectors is insufficient. Improved mechanisms are needed to translate existing information and research findings into reasonable and usable [specifications, criteria] *guidelines, codes, standards*, and practices so that individuals, organizations, and governmental units may make informed decisions and take appropriate actions.

(10) * * *

(11) * * *

(12) The built environment has generally been constructed and maintained to meet the needs of the users under normal conditions. **When earthquakes occur, the built environment is generally** *Relatively newer buildings and infrastructure have generally been designed to prevent severe injuries or loss of human life* **and is** *when earthquakes occur, but most are not expected to remain operational or able to recover under any specified schedule. In addition, buildings and infrastructure built to older codes and standards may pose significant risk of injury, loss of life, or irreparable damage. A 2021 report submitted to Congress pursuant to section 8(b), as amended by section 5 of the National Earthquake Hazards Reduction Program Reauthorization Act of 2018 (Public Law 115–307), by the Federal Emergency Management Agency and the National Institute of Standards and Technology (FEMA P2090/NST SP–1254) provides recommendations for improving post-earthquake functional recovery time of the built environment to support community resilience goals and many of these recommendations still need to be implemented.*

(13) The National Research Council published a study in 2011 on reducing hazards and risks associated with earthquakes based on the goals and objectives for achieving national earthquake resilience described in the strategic plan entitled “Strategic Plan for the National Earthquake Hazards Reduction Program”. The study and an accompanying report called for work in 18 tasks focused on research, preparedness, and mitigation and annual funding of approximately \$300,000,000 (in 2011 dollars) per year for 20 years. *The cost of actual seismic retrofits to reduce known risks is not included in such valuation.*

[42 U.S.C. 7702]

SEC. 3. PURPOSE.

It is the purpose of the Congress in this Act to reduce the risks of life and property from future earthquakes and increase the resilience of communities in the United States through the establishment and maintenance of an effective earthquake hazards reduction program. The objectives of such program shall include—

(1) the education of the public, including State **and local**, *local, and Tribal government* officials, as to earthquake phenomena, the identification of **locations and structures** *buildings and infrastructure* which are especially susceptible to earthquake damage, ways to reduce the adverse consequences of an earthquake to individuals and the communities, and related matters;

(2) the development of technologically and economically feasible design **and construction**, *construction, evaluation, and retrofitting* methods and procedures to make new and existing structures, in areas of seismic risk, earthquake resistant, giving priority to the development of such methods and procedures for power generating plants, dams, hospitals, schools, public utilities and other lifeline infrastructure, public safety structures, high occupancy buildings, *housing and care facili-*

ties for vulnerable populations, and other structures which are especially needed to facilitate community-wide post-earthquake recovery and in times of disaster;

(3) * * *

(4) the development, publication, and promotion, in conjunction with State **and local**, *local, and Tribal government* officials and professional organizations, of model building and planning codes and other means to **encourage consideration of** *incorporate* information about seismic risk in making decisions about land-use policy and construction activity;

(5) * * *

(6) * * *

(7) * * *

[42 U.S.C. 7703]

SEC. 4. DEFINITIONS.

As used in this Act, unless the context otherwise requires:

(1) * * *

(2) * * *

(3) The term “seismic” and variants thereof mean having to do with, or caused by earthquakes, *including secondary effects such as earthquake-caused tsunamis*.

(4) * * *

(5) * * *

(6) * * *

(7) * * *

(8) * * *

(9) * * *

(10) * * *

(11) The term “Tribal government” has the meaning given the term “tribal government” in section 421 of the Congressional Budget Act of 1974 (2 U.S.C. 658).

(12) The term “functional recovery” means a post-earthquake performance state in which a building or lifeline infrastructure system is maintained, or restored, to safely and adequately support the basic intended functions associated with the pre-earthquake use or occupancy of a building, or the pre-earthquake service level of a lifeline infrastructure system.

(13) The term “earthquake forecast” means a statement of probabilities that 1 or more earthquakes within a clearly specified magnitude range may occur within a specified time interval and geographic region.

[42 U.S.C. 7704]

SEC. 5. NATIONAL EARTHQUAKE HAZARDS REDUCTION PROGRAM.

(a) ESTABLISHMENT.—

(1) IN GENERAL.—There is established the National Earthquake Hazards Reduction Program.

(2) PROGRAM ACTIVITIES.—The activities of the Program shall be designed to—

(A) develop effective measures for earthquake hazards reduction;

(B) promote the adoption of earthquake hazards reduction measures by Federal, State, **and local** *local, and Tribal* governments, national standards and model code organizations, architects and engineers, building owners, and

others with a role in planning **and constructing**, *designing, constructing, evaluating, and retrofitting* buildings, structures, and lifeline infrastructure through—

(i) grants, contracts, cooperative agreements, and technical assistance;

[(ii) development of standards, guidelines, and voluntary consensus codes for earthquake hazards reduction for buildings, structures, and lifeline infrastructure;]

(ii) development of standards, guidelines, and voluntary standards, guidelines, and consensus codes for earthquake hazards reduction for buildings, structures, and lifeline infrastructure, including post-earthquake recovery-based performance objectives that address re-occupancy and downtime of community-prioritized buildings, structures, and services provided by lifeline infrastructure;

(iii) development and maintenance of a repository of information, including technical data, on seismic risk, community resilience, **and hazards reduction; and** *functional recovery, and other hazards reduction topics;*

(iv) publishing *and maintaining* a systematic set of maps of active faults and folds, liquefaction susceptibility, *in coordination with the National Tsunami Hazards Mitigation Program*, tsunami susceptibility, susceptibility for earthquake induced landslides, and other seismically induced hazards**;** **and**;

(v) subject to the availability of funds, development of best practices and guidelines to create an inventory of and conduct seismic performance evaluations of buildings, structures, and lifeline infrastructure with high seismic risk, especially those that are critical to community resilience; and

(vi) subject to the availability of funds, the provision of technical assistance upon request by a State, local, or Tribal government regarding—

(I) the creation of an inventory of buildings, structures, and lifeline infrastructure;

(II) the performance of seismic performance evaluations; and

(III) cost-effective best practices for retrofitting existing buildings, structures, and lifeline infrastructure.

(C) improve the understanding of earthquakes and their effects on communities, buildings, structures, and lifeline infrastructure, through interdisciplinary research that involves engineering, natural sciences, and social, economic, and decision sciences**;** **and**;

(D) improve the understanding of—

(i) the multiple hazards associated with earthquakes, including liquefaction, tsunamis, landslides, and structural fires; and

(ii) potential mitigation measures for such hazards; and

[(D)](E) continue the development of the Advanced National Seismic System, including earthquake early warning capabilities and the Global Seismographic Network.

(3) INTERAGENCY COORDINATING COMMITTEE ON EARTHQUAKE HAZARDS REDUCTION.—

(A) IN GENERAL.—There is established an Interagency Coordinating Committee on Earthquake Hazards Reduction chaired by the Director of the National Institute of Standards and Technology (referred to in this subsection as the “Director”).

(B) MEMBERSHIP.—In addition to the Director, the committee shall be composed of—

(i) the Administrator of the Federal Emergency Management Agency;

(ii) the Director of the United States Geological Survey;

(iii) the Director of the National Science Foundation;

(iv) the Director of the Office of Science and Technology Policy; and (v) the Director of the Office of Management and Budget.

(C) MEETINGS.—The Committee shall meet not less frequently than once each year at the call of the Director.

(D) DUTIES.—

(i) GENERAL DUTY.—The Interagency Coordinating Committee shall oversee the planning, management, and coordination of the Program.

(ii) SPECIFIC DUTIES.—The duties of the Interagency Coordinating Committee include the following:

(I) Developing, not later than 6 months after the date of the enactment of the National Earthquake Hazards Reduction Program Reauthorization Act of 2004 and updating periodically—

(aa) a strategic plan that establishes goals and priorities for the Program activities described under subsection (a)(2); and

(bb) a detailed management plan to implement such strategic plan.

(II) Developing a coordinated interagency budget for the Program that will ensure appropriate balance among the Program activities described under subsection (a)(2), and, in accordance with the plans developed under subclause (I), submitting such budget to the Director of the Office of Management and Budget at the time designated by the Director for agencies to submit biennial budgets.

(III) Developing interagency memorandums of understanding with any relevant Federal agencies on data sharing and resource commitment in the event of an earthquake disaster.

(IV) Coordinating with the Interagency Coordinating Committee on Windstorm Impact Reduction and other natural hazards coordination committees as the Director determines appropriate to share data and best practices.

(V) Coordinating with the Administrator of the National Aeronautics and Space Administration and the Administrator of the National Oceanic and Atmospheric Administration on data sharing and resource allocation to ensure judicious use of Government resources and the free-flowing exchange of information related to earthquakes *and associated secondary hazards*.

(VI) Coordinating with the Secretary of Agriculture and the Secretary of the Interior on the use of public lands for earthquake monitoring and research stations, and related data collection.

(VII) Coordinating with the Secretary of Transportation and the Secretary of Housing and Urban Development on the effects of earthquakes on transportation and housing stocks.

(VIII) Coordinating with the Chair of the Federal Communications Commission on the timely broadcasting of emergency alerts generated by the earthquake early warning system.

(iii) ASSISTANCE FROM SECRETARY OF AGRICULTURE AND SECRETARY OF THE INTERIOR.—To the extent practicable, the Secretary of Agriculture and the Secretary of the Interior shall expedite any request for a permit to use public land under clause (ii)(VI).

(4) BIENNIAL REPORT.—

(A) IN GENERAL.—Not less frequently than once every two years, the Interagency Coordinating Committee shall submit to the Committee on Commerce, Science, and Transportation, the Committee on Energy and Natural Resources, and the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Science, Space, and Technology, the Committee on Energy and Commerce, the Committee on Natural Resources, and the Committee on Homeland Security of the House of Representatives a report on the Program. Such report shall include—

(i) the Program budget for the current fiscal year for each agency that participates in the Program, and for each major goal established for the Program activities **【under paragraph (3)(D)(i)(I)】** *under paragraph (3)(D)(ii)(I)*;

(ii) the proposed Program budget for the next fiscal year for each agency that participates in the Program, and for each major goal established for the Program activities **【under paragraph (3)(D)(i)(I)】** *under paragraph (3)(D)(ii)(I)*;

(iii) a description of the activities and results of the Program during the previous year, including an assessment of the effectiveness of the Program in furthering the goals established in the strategic plan **【under paragraph (3)(D)(i)(I)】** *under paragraph (3)(D)(ii)(I)*;

(iv) a description of the extent to which the Program has incorporated the recommendations of the Advisory Committee;

(v) a description of activities, including budgets for the current fiscal year and proposed budgets for the next fiscal year, that are carried out by Program agencies and contribute to the Program, but are not included in the Program;

(vi) a description of the activities, including budgets for the current fiscal year and proposed budgets for the following fiscal year, related to the grant program carried out under subsection (b)(2)(A)(i); and

(vii) a statement regarding whether the Administrator of the Federal Emergency Management Agency has lowered or waived the cost share requirement for assistance provided under subsection (b)(2)(A)(i).

(B) SUPPORT FOR PREPARATION OF REPORT.—Each head of a Program agency shall submit to the Director of the National Institute of Standards and Technology such information as the Director may request for the preparation of a report under subparagraph (A) not later than 90 days after the date on which the Director requests such information.

(5) ADVISORY COMMITTEE.—

(A) IN GENERAL.—The Director shall establish an Advisory Committee on Earthquake Hazards Reduction of at least 11 members, none of whom may be an employee (as defined in subparagraphs (A) through (F) of section 7342(a)(1) of title 5, United States Code, including *the Chair of the Scientific Earthquake Studies Advisory Committee* and representatives of research and academic institutions, industry standards development organizations, State [and local government], *local, and Tribal governments*, and financial communities who are qualified to provide advice on earthquake hazards reduction and represent all related scientific, architectural, and engineering disciplines. The recommendations of the Advisory Committee shall be considered by Federal agencies in implementing the Program.

(B) ASSESSMENT.—The Advisory Committee shall assess—

(i) trends and developments in the science and engineering of earthquake hazards reduction;

(ii) effectiveness of the Program in carrying out the activities under (a)(2);

(iii) the need to revise the Program; and

(iv) the management, coordination, implementation, and activities of the Program.

(C) REPORT.—Not later than 1 year after the date of enactment of the National Earthquake Hazards Reduction Program Reauthorization Act of 2004 and at least once every 2 years thereafter, the Advisory Committee shall report to the Director on its findings of the assessment carried out under subparagraph (B) and its recommendations for ways to improve the Program. In developing rec-

ommendations, the Committee shall consider the recommendations of the United States Geological Survey Scientific Earthquake Studies Advisory Committee.

(D) APPLICATION OF CHAPTER 10 OF TITLE 5, UNITED STATES CODE.—Section 1013 of title 5, United States Code, shall not apply to the Advisory Committee.

(b) RESPONSIBILITIES OF PROGRAM AGENCIES.—

(1) LEAD AGENCY.—The National Institute of Standards and Technology shall have the primary responsibility for planning and coordinating the Program. In carrying out this paragraph, the Director of the Institute shall—

(A) ensure that the Program includes the necessary steps to promote the implementation of earthquake hazard reduction measures by Federal, State, ~~and local governments, national standards and model building code organizations, architects and engineers, and others with a role in planning and constructing buildings and lifeline infrastructure;~~ *local, and Tribal governments, national standards and model building code organizations, architects and engineers, and others with a role in planning, designing, constructing, evaluating, and retrofitting buildings and lifeline infrastructure;*

(B) support the development of performance-based seismic engineering tools, and work with appropriate groups to promote the commercial application of such tools, through earthquake-related building codes, standards, and construction practices;

(C) *improve the understanding of earthquake-caused fires and support the development of engineering tools and construction methods that mitigate the risk of fire following earthquakes;*

(D) *develop, in coordination with the Administrator of the Federal Emergency Management Agency, best practices and guidelines for a State, local, or Tribal government to create an inventory of buildings, structures, or lifeline infrastructure that are critical to community resilience or otherwise have high seismic risk;*

(E) *provide, in coordination with the Administrator of the Federal Emergency Management Agency, technical assistance to a State, local, or Tribal government requesting such assistance with respect to the creation of an inventory of buildings, structures, or lifeline infrastructure;*

~~[(C)]~~(F) request the assistance of Federal agencies other than the Program agencies, as necessary to assist in carrying out this Act; and

~~[(D)]~~(G) work with the Federal Emergency Management Agency, the National Science Foundation, and the United States Geological Survey, to develop a comprehensive plan for earthquake engineering research to provide new and effectively use existing testing facilities and laboratories (existing at the time of the development of the plan), upgrade facilities and equipment as needed, and integrate new, innovative testing approaches to the research infrastructure in a systematic manner.

(2) DEPARTMENT OF HOMELAND SECURITY; FEDERAL EMERGENCY MANAGEMENT AGENCY.—

(A) PROGRAM RESPONSIBILITIES.—The Administrator of the Federal Emergency Management Agency—

(i) shall operate a program of grants and assistance to enable States *and Tribal governments* to develop mitigation, preparedness, and response plans, purchase necessary instrumentation, prepare inventories and conduct seismic safety inspections *and performance evaluations* of critical structures and lifeline infrastructure, update building, land use planning, and zoning codes and ordinances to enhance seismic safety *and improve post-earthquake functional recovery*, increase earthquake awareness and education, and provide assistance to multi-State groups for such purposes;

(ii) shall support the implementation of a comprehensive earthquake education, outreach, and public awareness program, including development of materials and their wide dissemination to all appropriate audiences, *including Tribal entities*, and support public access to locality-specific information that may assist the public in preparing for, mitigating against, responding to and recovering from earthquakes and related disasters;

(iii) shall, in conjunction with the Director of the National Institute of Standards and Technology, other Federal agencies, and private sector groups, use research results to support the preparation, maintenance, and wide dissemination **[of seismic resistant]** *to all appropriate audiences, including Tribal governments, of design guidance and related information on building codes, standards, and practices for new and existing buildings, structures, and lifeline infrastructure that enhance seismic safety, improve post-earthquake functional recovery, and reduce losses from earthquakes*, aid in the development of performance-based design guidelines and methodologies, and support model codes that are cost effective and affordable in order to promote better practices within the design and construction industry and reduce losses from earthquakes;

(iv) shall enter into cooperative agreements or contracts with States **[and local]**, *local, and Tribal* jurisdictions and other Federal agencies to establish demonstration projects on earthquake hazard mitigation, to link earthquake research and mitigation efforts with emergency management programs, or to prepare educational materials for national distribution**[; and]**;

(v) shall provide technical assistance to State, local, or Tribal governmental entities in the creation of evacuation plans in the event of an earthquake, landslide, tsunami, or other earthquake-related hazard; and

[(v)](vi) shall support the Director of the National Institute of Standards and Technology in the completion of programmatic goals.

(B) STATE AND TRIBAL ASSISTANCE PROGRAM CRITERIA.—

In order to qualify for assistance under subparagraph

(A)(i), a State or Tribal government must—

(i) demonstrate that the assistance will result in enhanced seismic [safety] *performance, community resilience, or public awareness* in the State;

(ii) provide 25 percent of the costs of the activities for which assistance is being given, except that the Administrator may lower or waive the cost-share requirement for these activities for a small impoverished community, as defined in section 203 of the Disaster Relief Act of 1974 (42 U.S.C. 5133(a)); and

(iii) meet such other requirements as the Administrator shall prescribe.

(3) UNITED STATES GEOLOGICAL SURVEY.—The United States Geological Survey shall report on significant domestic and international earthquakes and conduct research and other activities necessary to characterize and identify earthquake hazards, assess earthquake risks, monitor seismic activity, and improve earthquake forecasts. In carrying out this paragraph, the Director of the United States Geological Survey shall—

(A) conduct a systematic assessment of the seismic risks in each region of the Nation prone to earthquakes, including, where appropriate, the establishment and operation of intensive monitoring projects on hazardous faults, seismic microzonation studies in urban and other developed areas where earthquake risk is determined to be significant, and engineering seismology studies;

(B) work with officials of State [and local], *local, and Tribal* governments to ensure that they are knowledgeable about the specific seismic risks in their areas;

(C) develop standard procedures, in consultation with the Administrator of the Federal Emergency Management Agency, *the Chair of the Federal Communications Commission*, and the Director of the National Institute of Standards and Technology, for issuing earthquake alerts and early warnings;

(D) *coordinate with the Administrator of the National Oceanic and Atmospheric Administration and the Administrator of the Federal Emergency Management Agency on data sharing and resource allocation to support a timely response to oceanic earthquakes and tsunamis;*

(E) *in consultation with the Chair of the Federal Communications Commission, ensure that earthquake alerts and early warnings are broadcast as rapidly and reliably as possible, in the predominant languages in the affected region, to ensure maximum warning time for nearby persons;*

(F) *expand the earthquake early warning system within and to additional high risk hazard areas, including making improvements as practicable to improve detection and*

increase the time between warning messages and perceptible ground motion;

(G) coordinating with affected State and Tribal governments on earthquake early warning system improvements;

(H) issue earthquake forecasts, when appropriate, for aftershocks associated with significant earthquakes in the United States;

[(D)](I) issue when necessary and feasible, and notify the Administrator of the Federal Emergency Management Agency, the Chair of the Federal Communications Commission, the Director of the National Institute of Standards and Technology, and State and local officials, an alert and an earthquake warning;

[(E)](J) operate, including the National Earthquake Information Center, a forum for the international exchange of earthquake information which shall—

(i) promote the exchange of information on earthquake research and earthquake preparedness between the United States and other nations;

(ii) maintain a library containing selected reports, research papers, and data produced through the Program;

(iii) answer requests from other nations for information on United States earthquake research and earthquake preparedness programs; and

(iv) direct foreign requests to the agency involved in the Program which is best able to respond to the request;

[(F)](K) operate a National Seismic System;

[(G)](L) support regional seismic networks, which shall complement the National Seismic Network~~]; and~~];

[(H)](M) work with the National Science Foundation, the Federal Emergency Management Agency, and the National Institute of Standards and Technology to develop a comprehensive plan for earthquake engineering research to effectively use existing testing facilities and laboratories (in existence at the time of the development of the plan), upgrade facilities and equipment as needed, and integrate new, innovative testing approaches to the research infrastructure in a systematic manner~~].~~];

[(I)](N) work with other Program agencies to coordinate Program activities with similar earthquake hazards reduction efforts in other countries, to ensure that the Program benefits from relevant information and advances in those countries;

[(J)](O) maintain suitable seismic hazard maps and data in support of building codes for structures and lifeline infrastructure, including *maps of natural hazards associated with earthquakes* and additional maps needed for performance-based design approaches; and

[(K)](P) support the Director of the National Institute of Standards and Technology in the completion of programmatic goals.

(4) NATIONAL SCIENCE FOUNDATION.—

(A) IN GENERAL.—The National Science Foundation shall be responsible for funding research on earth sciences to improve the understanding of the causes and behavior of earthquakes, on earthquake engineering, and on human response to earthquakes. In carrying out this paragraph, the Director of the National Science Foundation shall—

(i) encourage prompt dissemination of significant findings, sharing of data, samples, physical collections, and other supporting materials, and development of intellectual property so research results can be used by appropriate organizations to mitigate earthquake damage;

(ii) in addition to supporting individual investigators, support university research consortia, State agencies, State geological surveys, and centers for research in geosciences and in earthquake engineering;

(iii) work closely with the United States Geological Survey to support applied science in the production of a systematic series of earthquake-related geologic hazard maps, *including updated tsunami and liquefaction risk maps*, and to identify geographic regions of national concern that should be the focus of targeted solicitations for earthquake-related research proposals;

(iv) support research that improves the safety and performance of buildings, structures, and lifeline systems using experimental and computational facilities;

(v) emphasize, in earthquake engineering research, development of economically feasible methods to retrofit existing buildings and to protect lifeline infrastructure to mitigate earthquake damage; (vi) support research that studies the political, economic, and social factors that influence the implementation of hazard reduction measures;

(vii) include to the maximum extent practicable diverse institutions, including [Historically Black Colleges and Universities and those serving large proportions of Hispanics, Native Americans, Asian-Pacific Americans, and other underrepresented populations] *institutions described in section 371(a) of the Higher Education Act of 1965 (20 U.S.C. 1067q(a))*;

(viii) develop, in conjunction with the Federal Emergency Management Agency, the National Institute of Standards and Technology, and the United States Geological Survey, a comprehensive plan for earthquake engineering research to effectively use existing testing facilities and laboratories (in existence at the time of the development of the plan), upgrade facilities and equipment as needed, and integrate new, innovative testing approaches to the research infrastructure in a systematic manner; and

(ix) support the Director of the National Institute of Standards and Technology in the completion of programmatic goals.

* * * * *

SEC. 8. SEISMIC STANDARDS.

(a) * * *

(b) **REPORT TO CONGRESS.**—Not later than June 30, 2020, the committee convened **under paragraph (1)** *under subsection (a)* shall submit to the Committee on Commerce, Science, and Transportation, the Committee on Energy and Natural Resources, and the Committee on Homeland Security and Governmental Affairs of the Senate and the Committee on Science, Space, and Technology, the Committee on Natural Resources, and the Committee on Homeland Security of the House of Representatives a report on recommended options for improving the built environment and critical infrastructure to reflect performance goals stated in terms of post-earthquake reoccupancy and functional recovery time.

(c) **IMPLEMENTATION OF RECOMMENDATIONS.**—*Each Program agency, as part of their Program responsibilities, shall implement, within the Program activities authorized by this Act, the applicable recommendations in the report submitted pursuant to subsection (b) to improve the performance of the built environment in terms of post-earthquake reoccupancy and functional recovery time.*

(d) **BIENNIAL REPORTS.**—

(1) **BIENNIAL REPORTS TO INTERAGENCY COORDINATING COMMITTEE.**—*No later than September 30, 2025, and not less frequently than once every 2 years thereafter, each Program agency shall submit to the Interagency Coordinating Committee a report on activities and progress made to support, promote, or advance the implementation of the recommendations included in the report submitted pursuant to subsection (b).*

(2) **INCLUSION IN BIENNIAL REPORTS OF INTERAGENCY COORDINATING COMMITTEE.**—*The Interagency Coordinating Committee shall include the information received under paragraph (1) in each biennial report submitted under section 5(a)(4), including consideration of a prioritized work plan to coordinate activities among the Program agencies and the necessary Program budget to fully implement the recommendations described in paragraph (1).*

* * * * *

SEC. 11. POST-EARTHQUAKE INVESTIGATIONS PROGRAM.

There is established within the United States Geological Survey a post-earthquake investigations program, the purpose of which is to investigate major *domestic and international* earthquakes, so as to learn lessons which can be applied to reduce the loss of lives and property in future earthquakes. The United States Geological Survey, in consultation with each Program agency, shall organize investigations to study the implications of the earthquake in the areas of responsibility of each Program agency. The investigations shall begin as rapidly as possible and may be conducted by grantees and contractors. The Program agencies shall ensure that the results of investigations are disseminated widely. The Director of the Survey is authorized to utilize earthquake expertise from the *Federal Emergency Management Agency*, the National Science Foundation, the National Institute of Standards and Technology, other Federal agencies, and private contractors, on a reimbursable

basis, in the conduct of such earthquake investigations. At a minimum, investigations under this section shall include—

- (1) * * *
- (2) * * *
- (3) * * *

[42 U.S.C. 7706]

SEC. 12. AUTHORIZATION OF APPROPRIATIONS.

- (a)(1) * * *
- (2) * * *
- (3) * * *
- (4) * * *
- (5) * * *
- (6) * * *
- (7) * * *

(8) There are authorized to be appropriated to the Federal Emergency Management Agency for carrying out this title—

- (A) \$21,000,000 for fiscal year 2005,
- (B) \$21,630,000 for fiscal year 2006,
- (C) \$22,280,000 for fiscal year 2007,
- (D) \$22,950,000 for fiscal year 2008,
- (E) \$23,640,000 for fiscal year 2009,
- (F) \$8,758,000 for fiscal year 2019,
- (G) \$8,758,000 for fiscal year 2020,
- (H) \$8,758,000 for fiscal year 2021,
- (I) \$8,758,000 for fiscal year 2022[, and],
- (J) \$8,758,000 for fiscal year 2023,
- (K) \$8,500,000 for fiscal year 2024,
- (L) \$8,500,000 for fiscal year 2025,
- (M) \$8,500,000 for fiscal year 2026,
- (N) \$8,500,000 for fiscal year 2027, and
- (O) \$8,500,000 for fiscal year 2028,

of which not less than 10 percent of available program funds actually appropriated shall be made available each such fiscal year for supporting the development of performance-based, cost-effective, and affordable design guidelines and methodologies in codes for buildings, structures, and lifeline infrastructure.

(b) GEOLOGICAL SURVEY.—(1) * * *

(2) There are authorized to be appropriated to the United States Geological Survey for carrying out this title—

- (A) \$77,000,000 for fiscal year 2005, of which not less than \$30,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;
- (B) \$84,410,000 for fiscal year 2006, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;
- (C) \$85,860,000 for fiscal year 2007, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;
- (D) \$87,360,000 for fiscal year 2008, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;

(E) \$88,900,000 for fiscal year 2009, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;

(F) \$83,403,000 for fiscal year 2019, of which not less than \$30,000,000 shall be made available for completion of the Advanced National Seismic System established under section 7707 of this title;

(G) \$83,403,000 for fiscal year 2020, of which not less than \$30,000,000 shall be made available for completion of the Advanced National Seismic System established under section 7707 of this title;

(H) \$83,403,000 for fiscal year 2021, of which not less than \$30,000,000 shall be made available for completion of the Advanced National Seismic System established under section 7707 of this title;

(I) \$83,403,000 for fiscal year 2022, of which not less than \$30,000,000 shall be made available for completion of the Advanced National Seismic System established under section 7707 of this title【; and】;

(J) \$83,403,000 for fiscal year 2023, of which not less than \$30,000,000 shall be made available for completion of the Advanced National Seismic System established under section 7707 of this title【.】;

(K) \$92,427,000 for fiscal year 2024, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;

(L) \$92,427,000 for fiscal year 2025, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;

(M) \$92,427,000 for fiscal year 2026, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13;

(N) \$92,427,000 for fiscal year 2027, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13; and

(O) \$92,427,000 for fiscal year 2028, of which not less than \$36,000,000 shall be made available for completion of the Advanced National Seismic System established under section 13.

(c) NATIONAL SCIENCE FOUNDATION.—(1)* * *

(2) There are authorized to be appropriated to the National Science Foundation for carrying out this title—

(A) \$38,000,000 for fiscal year 2005;

(B) \$39,140,000 for fiscal year 2006;

(C) \$40,310,000 for fiscal year 2007;

(D) \$41,520,000 for fiscal year 2008;

(E) \$42,770,000 for fiscal year 2009;

(F) \$54,000,000 for fiscal year 2019,

(G) \$54,000,000 for fiscal year 2020,

(H) \$54,000,000 for fiscal year 2021,

(I) \$54,000,000 for fiscal year 2022【, and】.

- (J) \$54,000,000 for fiscal year 2023~~[,]~~,
- (K) \$54,000,000 for fiscal year 2024,
- (L) \$54,000,000 for fiscal year 2025,
- (M) \$54,000,000 for fiscal year 2026,
- (N) \$54,000,000 for fiscal year 2027, and
- (O) \$54,000,000 for fiscal year 2028.

(d) NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY.—(1)
* * *

(2) There are authorized to be appropriated to the National Institute of Standards and Technology for carrying out this title—

- (A) \$10,000,000 for fiscal year 2005,
- (B) \$11,000,000 for fiscal year 2006,
- (C) \$12,100,000 for fiscal year 2007,
- (D) \$13,310,000 for fiscal year 2008,
- (E) \$14,640,000 for fiscal year 2009,
- (F) \$5,900,000 for fiscal year 2019,
- (G) \$5,900,000 for fiscal year 2020,
- (H) \$5,900,000 for fiscal year 2021,
- (I) \$5,900,000 for fiscal year 2022~~[,]~~, and~~]~~,
- (J) \$5,900,000 for fiscal year 2023~~[,]~~,
- (K) \$5,900,000 for fiscal year 2024,
- (L) \$5,900,000 for fiscal year 2025,
- (M) \$5,900,000 for fiscal year 2026,
- (N) \$5,900,000 for fiscal year 2027, and
- (O) \$5,900,000 for fiscal year 2028,

of which \$2,000,000 shall be made available each such fiscal year for supporting the development of performance-based, cost-effective, and affordable codes for buildings, structures, and lifeline infrastructure.

* * * * *